

**BEFORE THE
FEDERAL MARITIME COMMISSION**

FRANCIS SHEKA KANU,

Complainant,

v.

EJIKE DICKSON EZE, SEALINES INTERNATIONAL,
SEAMATES INTERNATIONAL INC. and MAERSK,

Respondents.

DOCKET NO. 25-05

MOTION TO DISMISS THE COMPLAINT

Respondents, SeaLines International (“SeaLines”) and SeaMates International, Inc. (“SeaMates”)(SeaLines and SeaMates collectively “SeaLines Respondents”), by their attorneys, Betancourt, Greco & Evans LLC, hereby move, pursuant Rule 502.69 and 502.70 of the Federal Maritime Commission’s Rules of Practice and Procedure (the “FMC Rules”) and pursuant to Rules 12(b)(1) and 12(b)(6) of the Federal Rules of Civil Procedures (the “Federal Rules”), made applicable to this proceeding by the Rule 502.12 of the FMC Rules, to dismiss the Complaint because: (i) the claims asserted in the Complaint are breach of contract claims over which the Federal Maritime Commission does not have jurisdiction; (ii) the claims asserted in the Complaint are barred by the applicable statute of limitation; and (iii) the Complaint fails to allege facts which state a cause of action under the Shipping Act.

Accordingly, the SeaLines Respondents hereby move to dismiss the Complaint in its entirety.

Respondents respectfully refer to their Memorandum of Law in Support of the SeaLines Respondents' Motion to Dismiss the Complaint for a detailed explanation and analysis of the reasons the SeaLines Respondents' motion to dismiss should be granted.

WHEREFORE, the SeaLines Respondents respectfully request that the Complaint be dismissed in its entirety.

Dated: April 11, 2025

Respectfully submitted,

BETANCOURT, GRECO & EVANS LLC

/s/ John Greco

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*Counsel for Respondents SeaLines International,
Inc. and SeaMates International, Inc.*

CERTIFICATE OF SERVICE

I certify, under penalty of perjury, that on this 11th day of April, 2025 the foregoing Motion to Dismiss the Complaint was served via electronic mail on:

Francis Sheka Kanu
George W. Wright
Narinder S. Parmar

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/s/ John Greco
John Greco